

Baltistan Females Egress Prohibition Rules, 1958 (1901 A. D.)

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State of Jammu-Kashmir - Act

Baltistan Females Egress Prohibition Rules, 1958 (1901 A. D.)

JAMMU & KASHMIR

India

Baltistan Females Egress Prohibition Rules, 1958 (1901 A. D.)

Act 8 of 1958

Published on 4 February 1901

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Baltistan Females Egress Prohibition Rules, 1958 (1901 A. D.)

Published vide Government Gazette Notification No. 8 of 1958, dated 11th Har, 1958

Rules Placing Restrictions on Removal of Females from Baltistan.

[Sanctioned by His Highness the Maharaja Sahib Bahadur in Council vide State Council Resolution No. 35, dated 4th February, 1901.]

1.

No Balti female will be permitted to go beyond the boundaries of Baltistan without presenting a permit; such permit, allowing such permission, will be granted under these Rules.

2.

All such applications for grant of permit, shall be presented before the Tehsildar of the illaqa in which such female resides. Such application shall be made by the female who wants to go beyond the boundaries of Baltistan through her

husband, brother or any other proper guardian and it shall particularly contain the following facts-

(a)

name of the female with age, parentage and residence ;

(b)

name of the person (if any) accompanying her and his relation with her ;

(c)

reason, why she wants to go beyond the boundaries of Baltistan.

3.

On presentation of such an application, the Tehsildar shall enquire into the correctness of the facts mentioned in the application and after satisfying himself that -

(a)

the said female is not of less than 50 years age, or

(b)

in case her age, is less than 50 years, her duly married husband, or her father or brother or any other proper guardian is accompanying her.

(c)

she is not going out of Baltistan with some improper motive, will grant a permit under his signature and the seal of the Court permitting her to go out of the boundaries of Baltistan.

4.

No permit will be given except under the provisions of rule 3.

5.

An appeal against the order of the Tehsildar refusing to issue a permit shall lie to the [Deputy Commissioner]

[Substituted by Act No. III of 2008 for 'Wazir Wazarat'.]

within 60 days from the date of such order.

6.

A second appeal from the order of the [Deputy Commissioner]

[Substituted by Act No. III of 2008 for 'Revenue Minister'.]

within three months from the date of such order.

7.

Whoever takes away or abets in taking away a Balti female beyond the boundaries of Baltistan or whosoever being a Balti female goes beyond the boundaries of Baltistan in contravention of these Rules, shall be punished with imprisonment which may extend to three months or with fine which may extend to one hundred rupees or with both.

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